Federalist No. 51 & Brutus No. 1

Publius (James Madison) · February 6, 1788 & "Brutus" · October 18, 1787

Source: The Federalist No. 51 — Avalon Project, Yale Law School; Brutus I — New-York Journal, 18 October 1787 (Constitution Society). Brutus retains 1787 spelling (uncontroulable, encreasing).

The fight over ratification was waged in the newspapers. Writing as "Brutus" in the *New-York Journal* on 18 October 1787, an Anti-Federalist warned that the Necessary and Proper and Supremacy Clauses would swallow the states whole, and that no free republic had ever governed a territory this vast. Four months later Publius answered in *The Federalist* No. 51: the danger is real, but the cure is structural — divide power between two governments and among three branches, so that ambition checks ambition. Together they pose the question this class turns on: did the Constitution create a limited federal government, or an unlimited national one?

> ***Connect:*** *Brutus wrote in October 1787, before any Bill of Rights existed. Which of his specific fears does the Bill of Rights (1791) answer — and which does it leave completely untouched?*

Key Passages

Federalist No. 51 — ambition against ambition

> The great security against a gradual concentration of the several powers in the same department, consists in giving to those who administer each department the necessary constitutional means and personal motives to resist encroachments of the others. … Ambition must be made to counteract ambition. … If men were angels, no government would be necessary.

Federalist No. 51 — the compound republic

> In the compound republic of America, the power surrendered by the people is first divided between two distinct governments, and then the portion allotted to each subdivided among distinct and separate departments. Hence a double security arises to the rights of the people. The different governments will control each other.

Brutus No. 1 — consolidation by clause

> This government is to possess absolute and uncontroulable power, legislative, executive and judicial, with respect to every object to which it extends … they may so exercise this power as entirely to annihilate all the state governments, and reduce this country to one single government.

Brutus No. 1 — the problem of extent

> A free republic cannot succeed over a country of such immense extent, containing such a number of inhabitants … The confidence which the people have in their rulers, in a free republic, arises from their knowing them.

HIPP Analysis

Complete each row using evidence from the passages and your background knowledge.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	
Intended Audience *Who was the source written for?*	

HIPP Element	Your Analysis
Purpose *What did the author want to accomplish?*	
Point of View *Whose perspective? Whose is missing?*	

Analysis Prompts

1. **SAQ (A·C·E):** Briefly explain ONE difference between Publius and Brutus over whether the proposed Constitution would leave the state governments any meaningful power. *Answer* the question directly, *Cite* one specific line from each document, and *Explain* how those lines support your answer.
2. Both writers claim to be defending liberty, but they fear different things — Publius fears an unjust majority, Brutus fears a distant central government. Whose fear does the Constitution as ratified take more seriously, and how can you tell from its structure?
3. Brutus argues that a republic cannot work across a territory this large; Publius argues in the same essay that a larger society is *more* capable of self-government. Which argument does the period from 1788 to 1861 support? Defend your answer with specific evidence.